

26STCV05030 26STCV05030

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-25

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Case Number: 26STCV05030 Hearing Date: August 25, 2026 Dept: 407

Tentative

Ruling

Judge

Brock T. Hammond, Department 407

HEARING DATE: August 25, 2026 TRIAL

DATE: Not set

CASE: Javaughn Young-White, et al. v. Jermone

E. Flucus

CASE NO.: 26STCV05030

MOTION TO COMPEL DISCOVERY RESPONSES AND
IMPOSING MONETARY

SANCTIONS PER CCP § 2023.030(a) FOR \$600.00
AGAINST DEFENDANT

MOTION
TO DEEM ADMITTED THE TRUTH OF MATTERS SPECIFIED IN

PLAINTIFF'S
REQUESTS FOR ADMISSION, SET ONE, AND IMPOSING

MONETARY
SANCTIONS PER CCP § 2033.280 FOR \$500 AGAINST DEFENDANT

MOVING PARTY: Plaintiff

Javaughn Young-White

RESPONDING

PARTY: No opposition

I. BACKGROUND

This is a habitability action. On June 11, 2026, Plaintiff, Javaughn Young-White, filed a motion to compel^[1] Defendant, Jermone E. Flucus, to provide responses to Plaintiff's First Set of Form Interrogatories, Special Interrogatories, and Request for Production of Documents, and a motion to deem the truth of the matters admitted in Plaintiff's Requests for Admissions, Set One. Plaintiff seeks monetary sanctions against Defendant.^[2]

The motions are unopposed.

II. LEGAL STANDARD

If a party to whom interrogatories and inspection demands were directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., §§ 2030.290(b), 2031.300(b).) If a party to whom requests for admission are directed fails to serve a timely response, the propounding party may move for an order that the truth of the matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280(b).) Failure to timely serve responses waives objections to the requests. (Code Civ. Proc., §§ 2030.290(a), 2031.300(a), 2033.280(a).) A party moving to compel discovery responses under these statutory provisions is not required to meet and confer prior to filing the motion. (See Code Civ. Proc., §§ 2030.290(b), 2031.300(b); see also *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411 [citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the proposition that "meet and confer" requirement "did not apply when propounding party sought order compelling responses to interrogatories and sanctions for responding party's failure to respond 'within the statutorily permitted time'"].) ¶¶¶

Monetary Sanctions

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for “misuse of the discovery process,” which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc., § 2023.010.)

If sanctions are sought, Code of Civil Procedure section 2023.040 requires that the notice specify the identity of the person against whom sanctions are sought and the type of sanction requested, that the motion be supported in the points and authorities, and the facts be set forth in a declaration supporting the amount of any monetary sanction.

If the court finds that a party has unsuccessfully made or opposed a motion to compel responses, the court “shall impose a monetary sanction . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c), 2031.300(c).) With respect to untimely responses to admissions requests, sanctions are mandatory. (Code Civ. Proc., § 2033.280(a).)

III. DISCUSSION

Plaintiff moves the court for an order compelling Defendant to provide responses to Plaintiff’s first set of Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, and to deem admitted the Requests for Admission (RFA). Plaintiff properly served Defendant with these discovery requests on May 5, 2026. However, at the time of the filing of these motions, Defendant had not served responses. (See Greer Decls.) Accordingly, all objections to the interrogatories and production requests are waived. Plaintiff is entitled to an order compelling verified

responses to the interrogatories and production requests without objections, and deeming admitted the admissions requests against Defendant.

¿Monetary Sanctions¿

Plaintiff requests sanctions against Defendant.¿ Given the court's ruling, sanctions are warranted.¿ Indeed, in the context of a motion to deem requests for admission admitted, sanctions are mandatory.¿ (Code Civ. Proc., § 2033.280(c).) Sanctions are therefore imposed against Defendant in the total request amount of \$1,100.00.

IV. CONCLUSION

The motion to compel is GRANTED. Defendant is ordered to serve verified responses to Plaintiff's First Set of Form Interrogatories, Special Interrogatories, and Requests for Production of Documents, without objection, within 30 days of this order.

The motion to deem admitted is GRANTED. Plaintiff's Requests for Admissions, Set One, are deemed admitted against Defendant.

Plaintiff's request for sanctions is GRANTED. Defendant is ordered to pay sanctions in the sum of \$1,100.00 within 30 days of this order.

Plaintiff is ordered to give notice, unless waived.

Dated: August 25, 2026

Brock T. Hammond

Judge of the
Superior Court

[1]

Plaintiff seeks to compel responses to three distinct discovery sets. Plaintiff should have paid for and

noticed three separate hearings.

Plaintiff is ordered to pay for two additional hearings and to file proof of payment with the court within 5 days of this order.

[2] Defendant is self-represented.